

ELIZABETH II



1967 CHAPTER xvi

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
Pittenweem Harbour. [14th July 1967]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act, 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Pittenweem Harbour Order Short title.
Confirmation Act 1967.

SCHEDULE

PITTENWEEM HARBOUR

Provisional Order to authorise the provost, magistrates and town councillors of the Royal Burgh of Pittenweem to carry out works for the improvement of the harbour of Pittenweem and to borrow money; and for other purposes.

Whereas the provost, magistrates and town councillors of the Royal Burgh of Pittenweem (hereinafter referred to as the "Town Council") are the owners of the harbour of Pittenweem (hereinafter referred to as the "harbour"):

1853 c. 93. And whereas by resolution dated the 1st April, 1856, the Town Council, as owners of the harbour, adopted the Burgh Harbours (Scotland) Act, 1853:

1881 c. civ. And whereas by the Pittenweem Harbour Order, 1881, as confirmed by the Pier and Harbour Orders Confirmation Act, 1881, further powers were conferred on the Town Council with respect to the harbour and it was provided that the said Order of 1881 and the said Act of 1853 as amended and varied by the said Order should be read and construed together as one Act or Order:

And whereas it is expedient that the Town Council should be authorised to carry out the works hereinafter described for the improvement of the harbour and to borrow money for the purposes of the said works and of their harbour undertaking:

And whereas it is expedient that the further powers mentioned in this Order should be conferred on the Town Council:

And whereas estimates have been prepared by the Town Council in relation to the following purposes in respect of which they are to be authorised to borrow money and such estimates are as follows:—

Dredging	£87,800
Refacing and underpinning of existing quay walls ...	£26,200:

And whereas plans and sections showing the lines, situations and levels of the works to be constructed under the powers of this Order were duly deposited with the sheriff clerk of the county of Fife and such plans and sections are respectively called the deposited plans and the deposited sections:

1936 c. 52. And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act, 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

PART I

PRELIMINARY

Short title
and citation.

1.—(1) This Order may be cited as the Pittenweem Harbour Order 1967.

(2) The Pittenweem Harbour Order, 1881, and this Order may be cited together as the Pittenweem Harbour Orders, 1881 and 1967.

PART I
—cont.

2.—(1) In this Order unless there is something in the subject or Interpretation. context repugnant to such construction the following words and expressions have the meanings hereby assigned to them, that is to say:—

“ Act of 1847 ” means the Harbours, Docks and Piers Clauses 1847 c. 27. Act, 1847;

“ Act of 1853 ” means the Burgh Harbours (Scotland) Act, 1853; 1853 c. 93.

“ Act of 1937 ” means the Harbours, Piers and Ferries (Scotland) 1937 c. 28. Act, 1937;

“ burgh ” means the Royal Burgh of Pittenweem;

“ date of commencement ” means the date of the passing of the Act confirming this Order;

“ deposited plans and sections ” means the plans and sections deposited in connection with this Order;

“ existing ” means existing at the date of commencement;

“ existing harbour ” means and includes the existing harbour of Pittenweem and the existing works in connection therewith;

“ harbour ” means and includes the existing harbour and the works;

“ harbour master ” means the harbour master for the harbour or other officer deputed by him;

“ harbour undertaking ” means and includes the harbour and the conveniences connected therewith and the right to levy rates, tolls and all other rights vested in the Town Council by the Act of 1853, the Order of 1881 and this Order and the entire undertaking of the Town Council in connection with the harbour;

“ high-water mark ” means the level of mean high-water springs;

“ hover vehicle ” means a vehicle, however propelled, designed to be supported on a cushion of air;

“ hydrofoil vessel ” means a vessel, however propelled, designed to be supported on foils;

“ low-water mark ” means the level of mean low-water springs;

“ Minister ” means the Minister of Transport;

“ Order of 1881 ” means the Pittenweem Harbour Order, 1881;

“ tidal work ” means so much of any work authorised by this Order as is on, under or over tidal waters or tidal lands below high-water mark;

“ Town Council ” means the Town Council of the burgh;

“ vessel ” includes any ship, boat, raft or craft of every class or description, however navigated or propelled and a hover vehicle and a hydrofoil vessel;

“ the works ” means the works authorised by this Order or, as the case may require, any part thereof.

PART I
—cont.

(2) Any reference in this Order to any other enactment shall, except so far as the context otherwise requires, be construed as a reference to that enactment as amended by or under any other enactment.

Incorporation
of Act of 1937.

3. Part III of the Act of 1937 so far as applicable and not inconsistent with or varied by the provisions of this Order is hereby incorporated with and forms part of this Order and for the purposes of such incorporation the works shall be deemed to be a marine work to which the said Part III shall apply.

Application
of Act of 1847.

4.—(1) Notwithstanding anything contained in section 10 of the Act of 1937, or in the Act of 1853 or the Order of 1881, sections 22, 24, 25, 26, 79, 80, 86 to 90, 94 to 98, and 101 of the Act of 1847 shall not apply to the works.

(2) In the application to this Order of the Act of 1847 the expression “the special Act” shall mean this Order and the meaning of the word “vessel” as defined in this Order shall be substituted for the meaning assigned to that word by section 3 of the Act of 1847.

1953 c. 36.

(3) Section 28 of the Act of 1847 (which section exempts certain vessels from the provisions of the Act) in its application to this Order shall have effect as if in the said section for the words from “or any packet boat” to “any such packet boat or packet” there were substituted the words “or any vessel employed by or under the authority of the Postmaster General for the conveyance under contract of postal packets as defined by the Post Office Act, 1953, not being a vessel also conveying passengers or goods for hire or reward, or any mail bag as so defined conveyed by any such vessel”.

PART II
WORKSPower to carry
out works.

5. Subject to the provisions of this Order, the Town Council may, in the situations and lines and within the limits of deviation and according to the levels shown on the deposited plans and sections, carry out the following works in the burgh and in the parish of Pittenweem in the county of Fife and on the foreshore and in the sea adjacent thereto:—

Work No. 1. The deepening of the entrance channel to the existing harbour over a width of 50 feet to a depth of 3 feet below low-water mark commencing at a point 282 feet or thereby in a south westerly direction from the south west corner of the existing breakwater and extending in a north easterly direction for a distance of 407 feet or thereby to a line set at right angles to the south east face of the existing New Pier at a point 50 feet from the east corner of the said pier and there terminating and extending to an area of 0.498 acres together with the underpinning in connection therewith of part of the south east face of the existing New Pier.

Work No. 2. The deepening of the existing Outer Harbour to a depth of 3 feet below low-water mark commencing at the termination of Work No. 1 and extending in a north easterly

direction for a distance of 160 feet or thereby to a line joining the south east corner of the existing Middle Pier to a point on the north west face of the existing Old Pier, 172 feet or thereby from the head of the said Old Pier, and there terminating and extending to an area of 0.416 acres together with the underpinning in connection therewith of the south face of the existing Middle Pier and that part of the south east face of the existing New Pier not included in Work No. 1.

Work No. 3. The deepening of the existing Inner Basin to a depth of 3 feet below low-water mark commencing at a point 90 feet or thereby from and on a line set at right angles to the north west face of the existing Middle Pier at a point 75 feet or thereby from the north west corner of the said pier and extending in a south westerly direction for a distance of 355 feet or thereby to a line drawn between the junction of the existing north west wall of the existing Inner Basin with the existing north wall of the existing New Basin and the north west face of the existing New Pier and there terminating and extending to an area of 1.163 acres together with the underpinning in connection therewith of the existing quay walls of the Inner Basin.

Work No. 4. The refacing as a solid structure of part of the existing north west wall of the Inner Basin commencing at the junction of the said north west wall with the existing north wall of the existing New Basin and extending in a north easterly direction for a distance of 272 feet or thereby and there terminating.

6. Subject to the provisions of this Order, in carrying out the works the Town Council may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on the said plans and may deviate vertically from the levels of the works as shown on the deposited sections to any extent not exceeding 10 feet. Power to deviate.

7.—(1) For the purpose of carrying out the works the Town Council may notwithstanding anything in any enactment— Temporary closure of harbour.

(a) temporarily close the existing harbour to vessels; and

(b) dry out the harbour by pumping or otherwise.

(2) Notwithstanding anything contained in this Order, the existing harbour shall not be closed to vessels for a longer period than two years.

8.—(1) Before exercising the power conferred on them by section 7 (Temporary closure of harbour) of this Order temporarily to close the existing harbour to vessels the Town Council shall— Removal of vessels from harbour.

(a) publish a notice of their intention to do so in Lloyd's List and once in each of two successive weeks in a local newspaper circulating in the burgh, with an interval between the dates of publication of not less than six clear days;

PART II
—cont.

- (b) display a notice thereof in a conspicuous position in the harbour; and
- (c) give notice thereof in writing to the Board of Trade.

(2) Each of the notices shall—

- (a) state that the Town Council intend temporarily to close the existing harbour to vessels; and
- (b) specify a date, which shall be a date not earlier than one month after the date of the later of the two publications, by which all vessels must be removed from the existing harbour.

(3) If—

- (a) the master of any vessel within the existing harbour does not remove the same before the date referred to in paragraph (b) of subsection (2) of this section; or
- (b) any vessel remaining within the existing harbour after that date has been laid by or neglected or abandoned or has become unserviceable;

the harbour master may cause every such vessel to be removed from the existing harbour and moored or laid in any other place where it may, without injury, be moored or laid, and the Town Council shall not be liable for any loss or injury caused to any person by reason of the exercise of the powers conferred by this subsection.

(4) The Town Council may recover from the owner of any vessel removed as aforesaid all expenses incurred by them in respect of its removal.

(5) The powers conferred on the Town Council and the harbour master by this section shall be in addition to and without prejudice to the powers as to the removal of vessels conferred upon them by sections 64 and 65 of the Act of 1847.

As to vessels
entering harbour
after date of
closure.

9. If any vessel enters the existing harbour after the date referred to in paragraph (b) of subsection (2) of section 8 (Removal of vessels from harbour) of this Order, the harbour master may direct the master of such vessel forthwith to remove the vessel from the existing harbour, and if the master of such vessel does not forthwith comply with such directions the provisions of subsections (3) to (5) inclusive of the said section 8 shall apply to and in respect of such vessel as if such vessel had been within the existing harbour before the said date.

Powers as to
subsidiary
works.

10. Subject to the provisions of this Order, the Town Council may from time to time erect, construct and maintain, whether temporarily or permanently, all such necessary works and conveniences as may be requisite or expedient for the purposes of or in connection with the construction, maintenance and use of the works.

Power to
maintain
and improve
harbour
undertaking.

11.—(1) Subject to the provisions of this Order, the Town Council may rebuild, maintain, repair, renew, widen, alter, improve, restore, reconstruct and extend the harbour undertaking and any works thereof, and in connection therewith may from time to time construct, erect, maintain, alter and improve all necessary ancillary works, buildings, apparatus and conveniences, and may also from time to time lay down and maintain rails, tramways and turntables.

(2) A line of rails or tramway constructed under the powers of this Order shall not be used for the public conveyance of passengers unless it has been certified by the Minister to be fit for that purpose.

PART II
—cont.

(3) Any electric light and power or other apparatus constructed and maintained under this Order shall be so constructed, used and maintained as to prevent any interference with any telegraphic line (as defined by the Telegraph Act, 1878), belonging to or used by the Postmaster General or with telegraphic communication by means of any such line. 1878 c. 76.

12. Any person who wilfully obstructs any person acting under the authority of the Town Council in setting out the lines of the works, or who pulls up or removes any poles or stakes driven into the ground for the purpose of such setting out, shall be guilty of an offence and shall be liable, on summary conviction, to a fine not exceeding five pounds and shall in addition be liable to repay to the Town Council any expenses incurred by them in making good such damage. Penalty for obstructing works.

13.—(1) If the works are not substantially commenced within five years from the date of commencement, or such extended time as the Secretary of State may in the circumstances by order direct, the powers granted to the Town Council by this Order for the construction of the works shall cease. Powers to cease in certain events.

(2) If the execution of the works after having been substantially commenced is virtually suspended for twelve consecutive months, the said powers shall cease except as to so much of the works as is then completed unless the Secretary of State by order directs that the said powers shall continue and remain in force but, subject to the foregoing provision as to completion, the said powers shall cease in any event within eight years from the date of commencement.

(3) A certificate of the Secretary of State to the effect that the works have not been substantially commenced or that they have been virtually suspended for twelve consecutive months shall, for the purposes of this section, be conclusive evidence of the facts stated in such certificate.

14.—(1) The works shall be deemed for all purposes to be part of the harbour undertaking and all byelaws, rules and regulations of the Town Council for the time being in force relating to the harbour undertaking shall be applicable and shall apply to the works and may be enforced by the Town Council accordingly. Works to be deemed part of harbour undertaking and in burgh.

(2) The works shall be deemed for all purposes to be within the burgh and within the parish of Pittenweem.

15.—(1) A tidal work shall not be constructed except in accordance with plans and sections approved by the Board of Trade and subject to any conditions and restrictions imposed by the Board before the work is begun. Tidal works not to be constructed without approval of Board of Trade.

(2) If a tidal work is constructed in contravention of this section or of any condition or restriction imposed under this section—

(a) the Board may by notice in writing require the Town Council at its own expense to remove the tidal work or any part

PART II
—*cont.*

thereof and restore the site thereof to its former condition; and if, on the expiration of thirty days, or such longer period as may be specified in the notice, from the date when the notice is served upon the Town Council it has failed to comply with the requirements of the notice, the Board may execute the works specified in the notice; or

- (b) if it appears to the Board urgently necessary so to do, they may themselves remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Board in so doing shall be a debt due from the Town Council to the Crown and shall be recoverable accordingly.

(3) References in this section, section 16 (Survey of tidal works) and section 18 (Lights on tidal works during construction) of this Order to the construction of a tidal work include references to the erection, alteration, improvement or other carrying out of any such work.

Survey of
tidal works.

16. The Board of Trade may at any time if they deem it expedient order a survey and examination of a tidal work constructed by the Town Council or of the site upon which it is proposed to construct the work and any expenditure incurred by the Board of Trade in any such survey and examination shall be a debt due from the Town Council to the Crown and shall be recoverable accordingly.

Abatement
of works
abandoned
or decayed.

17.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Board of Trade may by notice in writing require the Town Council at their own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Board think proper.

(2) Where a work authorised by this Order and consisting partly of a tidal work and partly of works on or over land above high-water mark is abandoned or suffered to fall into decay and that part of the work on or over land above high-water mark is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Board of Trade may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Town Council they have failed to comply with the requirements of the notice the Board of Trade may execute the works specified in the notice and any expenditure incurred by them in so doing shall be a debt due from the Town Council to the Crown and shall be recoverable accordingly.

Lights on tidal
works during
construction.

18.—(1) The Town Council shall at or near a tidal work during the whole time of the construction thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Board of Trade shall from time to time direct.

(2) If the Town Council fail to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

PART II
—cont.

19.—(1) After the completion of a tidal work the Town Council shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

Permanent
lights on tidal
works.

(2) If the Town Council fail to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

20.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof the Town Council shall forthwith notify the Commissioners of Northern Lighthouses and shall lay down such buoys exhibit such lights and take such other steps for preventing danger to navigation as the said Commissioners shall from time to time direct.

Provision
against
danger to
navigation.

(2) If the Town Council fail to notify the said Commissioners as required by this section or to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

PART III BORROWING

21. The power to borrow money conferred on county and town councils by section 21 of the Act of 1937 shall extend and apply with respect to the works, and with regard to the exercise by the Town Council of the powers conferred on them by this Order, in the same way as if the works were works authorised by a provisional order made under section 4 of the Act of 1937, and as if the exercise of the powers conferred on the Town Council by this Order were purposes of the Act of 1937.

Power to
borrow money
for purposes
of works, etc.

22. The Town Council in addition to any other powers of borrowing which they now have may, with the sanction of the Secretary of State, borrow such sums of money as may be necessary for—

Further
borrowing
powers.

(a) the general purposes of the harbour undertaking;

(b) the payment of the costs, charges and expenses of, and incidental to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto:

Provided that money so borrowed for purpose (a) shall be repaid within thirty years from the date or dates of borrowing and that money so borrowed for purpose (b) shall be repaid within five years from the date of commencement.

23. All moneys borrowed by the Town Council under this Order shall be applied only to the purposes for which such sums are authorised to be borrowed and to which capital is properly applicable.

Application
of moneys
borrowed.

PART III
—*cont.*

Saving for
control on
borrowing.
1946 c. 58.
1947 c. 43.

24. It shall not be lawful to exercise the powers of borrowing conferred by this Order, other than the power of borrowing to pay the costs, charges and expenses of this Order, except in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act, 1946, or of section 259 of the Local Government (Scotland) Act, 1947.

PART IV

MISCELLANEOUS

Recovery of
penalties.

25. Proceedings for any offence against this Order or for the recovery of any fine or penalty thereunder may be brought in any court of summary jurisdiction.

Crown rights.

26. Nothing in this Order shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein shall authorise the Town Council to take, use or in any manner interfere with any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary, or any land, heritages, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty, first had and obtained for that purpose.

As to powers
of Board of
Trade.

27. Anything required or authorised by or under this Order to be done by, to or before the Board of Trade may be done by, to or before the President of the Board, any Minister of State with duties concerning the affairs of the Board, any secretary, under-secretary or assistant secretary of the Board or any person authorised in that behalf by the President.

Saving for
town and
country
planning.

28. The provisions of the Town and Country Planning (Scotland) Acts, 1947 to 1966, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised or regulated by or under this Order.

Costs of
Order.

29. The costs, charges and expenses of and incidental to the preparing for, obtaining and confirming of this Order, or otherwise in relation thereto, shall be paid by the Town Council out of money to be borrowed by them under the powers of this Order for that purpose or in whole or in part out of the revenues of the harbour undertaking.

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Pittenweem Harbour Order Confirmation Act 1967

CHAPTER xvi

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PITTENWEEM HARBOUR

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